

Capt. M.S.Krishna Kumar vs Union Of India on 15 June, 2016

Author: M.M. Sundresh

Bench: M.M.Sundresh

IN THE HIGH COURT OF JUDICATURE AT MADRAS

RESERVED ON: 10.06.2016

DATE OF DECISION: 15.06.2016

CORAM:

The Honourable Mr. Justice M.M.SUNDRESH

W.P.No.32885 of 2014 & 124 of 2016
and W.M.P.No.63 of 2016

Capt. M.S.Krishna Kumar
Lakshmi Krishna 32, Perialwar Street,
Sundaram Colony, East Tambaram,
Chennai-600 059.

.. Petitioner in both WP

Vs

1 .Union of India
Rep. by its Secretary, Ministry of Civil
Aviation, Rajiv Gandhi Bhavan,
Safdarjung Airport, New Delhi-110003.

2 .Air India Limited,
Rep. by Chairman and Managing Director,
Airlines House, Gurudwara Rakabganj Road,
New Delhi-110001.

3. Air India Limited,
Executive Director of Operations,
New Delhi-110 003.

4. Air India Limited
General Manager, Operations Department,
Meenambakkam, Chennai-600 027.

.. Respondents in

W.P.32885/2014

1 .Union of India
Rep. by its Secretary, Ministry of Civil

Aviation, Rajiv Gandhi Bhavan,
Safdarjung Airport, New Delhi-110003.

- 2 .Air India Limited,
Rep. by Chairman and Managing Director,
Airlines House, Gurudwara Rakabganj Road,
New Delhi-110001.
3. Air India Limited,
Executive Director of Operations,
New Delhi-110 003.
4. Air India Limited,
Executive Director of Flight Safety,
New Delhi-110 003.
5. Central Training Establishment,
Air India Limited,
Represented by its Director of Training,
(CTE) Ferozguda, Hyderabad-500 011.
6. Air India Limited
General Manager, Operations Department,
Meenambakkam, Chennai-600 027.

.. Respondents in

W.P.No.124/2016

Prayer: Writ Petition in W.P.No.32885 of 2014 is filed under Article 226 of the Const

Prayer: Writ Petition in W.P.No.124 of 2016 is filed under Article 226 of the Constitut

For Petitioner in both W.Ps.	: Mr.M.S.Krishnakumar Party-in-Person
For 1st Respondent in both W.Ps.	: Mr.S.Meenakumari, Central Govt. Standing Counsel
For Respondents 2 to 4 in both WPs & R5 & R6 in W.P. No.124 of 2016	: Mr.K.Srinivasamurthy for Mr. N.G.R Prasad

COMMON ORDER

In view of the commonality of the issues between the very same parties, the writ petitions are taken up together and disposed of by a common order. For the sake of brevity, the respondents are addressed collectively.

2. Facts in brief:

2.1. The petitioner, at present, is working as a Deputy General Manager (Operations). He was assigned the position of a Check Pilot. The role of the Check Pilot is to check the proficiency of the other Pilots. It relates to such proficiency of Pilots, who got to fly sophisticated aircrafts at a high altitude qua the safety of the passengers. There are actually three assignments, such as, Check Pilot, Instructor and Examiner. Together, they are called as Training Captain. Such Training Captains would be included as such and given assignment based upon their continuous evaluation. The basic requirement of the Training Captains are integrity, free from prejudice and impartiality. Their primary function is to ensure the high standard of discipline maintained among flying group. Thus, these assignments of special categories of Training Captains do not come within the purview of promotional posts. Even the petitioner has been promoted notwithstanding the issues surrounding his Check Pilotship. It can at best be termed as a privilege to be conferred on evaluation of a Pilot.

2.2. In the case on hand, the petitioner's name was removed from the list of Check Pilots. The ultimate case of the petitioner is that he should be included as a Check Pilot with retrospective effect and thereafter, he should be awarded the post of Instructor. The role of an employee as a Pilot is distinct and different from that of the Check Pilot and thus, the requisite parameters are also different. This is inclusive of the training and other requirements. According to the respondents the performance of the petitioner was not satisfactory.

2.3. There was an issue between the respondents and the wife of the petitioner, who was also undergoing training. She was asked to pay certain amount for the completion of the training. The petitioner issued a cheque. The cheque got bounced due to the instruction given by the petitioner not to honor it. A decision was taken by the Executive Director (Training) on 13.10.2011 deciding to put on hold the services of the petitioner as a Check Pilot. It was on three grounds viz., the conduct of the petitioner in stopping payment of a cheque for a sum of Rs.44,100/- was not correct, the petitioner has circumvented CTE procedures and obtained his wife's licence directly from DGCA's office without the knowledge and consent of the authorities concerned and thirdly, he was indulging in smearing Senior AIL Executive Pilots with concocted allegations directly to external agencies. This decision was communicated through the letter of General Manager (Operations) dated 20.10.2011. It is the case of the petitioner that the actual decision dated 13.10.2011 was not communicated but only the subsequent decision wherein a contra stand has been taken by the respondents. However, the fact remains that the petitioner was aware of the decision made. It was followed by another letter dated 19.03.2012 by way of a reply to the petitioner stating that contrary to the instruction, the petitioner did not meet the officer concerned.

2.4. The petitioner was informed by the letter dated 16.05.2012 that the issue concerning his Check Pilot assignment and the training of his wife are two different

ones. Thereafter, the petitioner made another representation. On the letter of the petitioner dated 12.05.2011, a Committee of higher officers was constituted. The petitioner was examined by the committee thoroughly. After such an examination, the following decision was made.

From the enquiry it is evident that some of the replies of Cap. M.S.Krishna Kumar are vague and in many occasions expressed his grudge on his colleagues (Pilots/Cabin Crew/Training Dept./Roaster etc.). His allegations on Senior Pilots/GM (Ops) of the base have no substantial evidence. He has scant regard for the administrative protocol and does not respect the authority.

His relations with roster or with his base Pilots, especially senior Captains in charge of Training is at nadir and with such nature he cannot be delivering the best as the Training Captain. It is pertinent to mention here that, he was not utilized as the Training Captain on a regular basis on all kinds of Training which he is qualified to perform. It is also evident from the records that he has vindictive nature towards his seniors in the base. Senior Pilots of his base have also alleged him of tampering official documents and also misuse of office stationary. Because of these reasons, it is our firm opinion that Capt.M.S.Krishna Kumar cannot do justice as the Training Captain, as such it may be withdrawn from the date as informed by ED(Trg.) Thus, the decision was made by the Committee on his conduct and behavior. It appears that the petitioner has not signed the abovesaid document.

2.5. For the reasons known to him, the petitioner gave a letter of apology. On receipt of the same, a decision was taken to give the petitioner a fair chance to prove his promised behavior for restoration of his Check Pilotship. It was done subject to the following conditions.

1.THs flying on line (Two sectors) with Instructor/Examiner

02.FOI will carry out Standardisation/Revalidation check as applicable. Accordingly, it was indicated in the above said letter dated 26.12.2012 that a final decision would be taken based upon the further input received.

2.6. On thorough analysis, it was found that the petitioner did not have adequate knowledge and abnormal check list and procedures thereof apart from not receptive to the counseling session. Thus, a recommendation was made by the abovesaid proceedings dated 29.04.2013 that the petitioner should undergo safety enhancement training inclusive of extended technical refresher followed by corrective session. It was further recommended that the petitioner should not be utilised as a Training Captain till further instruction is issued. The following passage of the letter dated 29.04.2013 would be apposite.

This has reference to our letter HOP/24-7569/9021 dated 10th April, 2013 on the above subject. The crew involved in the above incident Cap. M.S.Krishna Kumar was called to the office of the undersigned on 29th April, 2013 for counseling. The counseling team was of the view that Capt. Krishna Kumar does not have adequate knowledge of abnormal check list and procedures thereof and was not receptive to the counseling session. Hence it is recommended that Cap. Krishna Kumar should undergo safety enhancement training which should include extended technical refresher

followed by corrective session on A-320 simulator. In the meanwhile, he should not be utilized as Training Captain till further instructions from the office of the undersigned. 2.7. When the matter stood thus, the petitioner made a request before the Grievance Committee. The request made by the petitioner was rejected on 06.01.2014 stating that it has not come within the administrative purview of the Committee. Accordingly, the grievance was referred to the E.D. (Operations)/E.D (Training) . Not satisfied with it, the petitioner pursued the matter further before the Grievance Committee. Without analysing anything and contrary to the earlier stand, apart from putting the requisite Wing of the department viz., Training Committee, a cryptic order was passed by the Grievance Committee on 14.03.2014 as under.

Having heard the grievance of the employee concerned in person, the Committee is of the opinion that the status of Check Pilot must be restored to Cap. M.S.Krishnakumar from the date it was stopped and payment be made of the allowances from the date it was stopped. 2.8. According to the respondents, the Grievance Committee does not have any jurisdiction and in any case, the same is not binding on the respondents, more so, when they have not been heard, relevant records not perused and in the absence of any discussion. However, it is the case of the petitioner that it is binding on the respondents. Having obtained the aforesaid order, the petitioner has filed W.P.No.32885 of 2014 placing reliance upon the same inter alia contending that the respondents are bound to comply with.

2.9. The matter did not end there. Another communication was sent to the petitioner on 01.04.2014 by the General Manager (Operations) asking to attend classes scheduled on 04.04.2014. Curiously, the petitioner sent a reply stating that he is unable to attend the classes due to ill health of the family member and thus, did not repudiate the same. Thereafter, the Technical Committee consists of not less than 15 officers of repute took the matter for discussion, in which, a decision was made in the following manner.

Quote:

Capt.MS Krishna Kumar-

After an incident on A319 A/c A1 908 of 15th July 2012, FSD had counseled Capt MS Krishna Kumar on 29th April 2013 and was of the opinion that Capt. MS Krishna Kumar does not have adequate knowledge of abnormal Procedures and checklist and was not receptive to the counseling session. He was recommended to undergo Safety enhancement training comprising of A320 Extended Technical refresher followed by corrective session on A320 Simulator. FSD had further informed that he should not be utilised as Training Captain till further instructions from FSD. Capt. MS. Krishna Kumar till date has not reported for A320 Extended Refresher/corrective simulator training at CTE.

The then CFOI-DGCA while conducting the FOI interview for Capt. MS Krishna Kumar has informed GM(OPs)-Training-CTE to subject him to undergo CAT II/III B (LVO) Performance/Technical classes which he has not undergone informing the ill

health of his family member.

Finally when Capt. MS Krishna Kumar was slated for B787 ground classes from 19th Aug, 2014, he did not report for the same and sent a mail stating that I am unable to go till I am upgrade on Airbus .

Such instances of his disrespect for the higher-ups and the regulatory authority (DGCA), the committee is of the opinion that Capt. MS Krishna Kumar lacks the integrity and not to be taken up for LTC (Line Training Captain) revalidation. Thus, after proper analysis, the Committee was of the unanimous opinion that the petitioner lacks integrity and hence, not to be considered for Line Training Captain revalidation. Challenging the said decision made, a subsequent writ petition in W.P.No.124 of 2016 has been filed. These are the background facts governing the case.

3. Heard the petitioner, party-in-person and the learned counsel for the respondents, extensively perused the affidavits, documents and the written arguments filed.

4. Submissions of the Petitioner:

The petitioner appearing as a party-in-person submitted that it is the case of witch-hunting. The second respondent, who was also involved in the falsification of the records qua the petitioner's wife, has filed an affidavit before this Court. The problem started when the petitioner stopped the cheque payment. The proceedings are initiated belatedly contrary to the instruction received by way of circulars. The training undergone by the petitioner for the Pilot would be sufficient as he has cleared it. The decision of the Grievance Committee is binding. The initial decision made was not communicated to the petitioner. The subsequent report was not signed by him. Thus, they are not binding on him. The apology letter was given only on request. Though the Check Pilot was ordered/restored, it was not done. No proper enquiry was conducted. The counseling was done in a biased manner. It is a case of victimising the petitioner for not heeding to the boycott calls. Therefore, the writ petitions will have to be allowed by restoring the petitioner's original position qua the Check Pilot.

5. Submissions of the respondents:-

The learned counsel for the respondents submitted that there is no basis of bias against all the respondents. The respondent is an institution having different wings. The decision was made by the competent Committee after proper analysis. There is no malice established either on fact or on law. The Check Pilot is only a privilege. It can be withdrawn at any point of time on performance. Considering the nature of assignment, a decision was taken. High level of integrity and proficiencies are required for the said assignment. The role of the Pilot is different from the Check

Pilot. There is no promotion involved in being a Check Pilot. The conduct of the petitioner was not good for number of years as the records filed by the respondent would demonstrate. The petitioner instead of complying with the directions, has come forward to this Court. As the analysis is highly technical, such an exercise is not required by the Court. The decision of the Grievance Committee does not have any bearing on the duties assigned to the Training Committee and therefore, the writ petitions have to be dismissed.

6. DISCUSSION:-

6.1. As discussed above, there is no issue regarding promotion involved in these writ petitions. When a Check Pilotship is only an assignment with a specific role attached to it, then it is for the authorities concerned to decide. A Check Pilot has to check the proficiency of the other Pilots. Therefore, he is required to have the requisite parameters. There is no permanency attached to a Check Pilot. It is subject to review from time to time.

6.2. It is not as a matter of right that one can claim by way of seniority to Check Pilotship. The requirements of integrity free from prejudice and strong likes and dislikes coupled with the capacity to record fair assessment are mandatory. When the Training Committee cancelled the assignment of an Officer on his requirements, a Court of Law cannot go into it by replacing its views. The initial Report dated 13.10.2011 gives its own reasons. The subsequent communications and the final decision made on 02.02.2015 also indicate the application of mind on the part of the technical. Therefore, such a wisdom cannot be questioned especially when it was done by a group of higher officials unanimously. Power of judicial review over such a decision is very limited. Therefore, this Court does not find any irregularity or illegality in the decision made.

6.3. This Court does not find any bias or malice as alleged by the petitioner. It is trait that the allegations will have to be substantiated by acceptable evidence. No Officer is named in person. It is the petitioner, who gave the apology letter. Having done that, he cannot question the initial decision made, in putting on hold the services of the petitioner as a Check Pilot. He cannot plead ignorance of the order dated 20.10.2011. He was quite aware of the said order as seen from the proceedings of the Committee constituted by four senior Officers dated 28.08.2012. These proceedings came into being in pursuant to the letter of the petitioner dated 16.05.2012. A reply was given to the petitioner clearly stating that the decision was not with respect to the issues governing his wife. The petitioner did participate in the proceedings before the Committee constituted in pursuant to the letter given by him on 12.05.2011. Therefore, the contention of the petitioner on the non supply of reasons for the earlier decision and the subsequent report dated 19.03.2012 cannot be accepted. The fact that he did not sign the said enquiry conducted is also relevant.

6.4. Even otherwise, the petitioner cannot go back to the earlier proceedings in view of the letter given by him followed by the orders dated 26.12.2012 and 29.04.2013. Therefore, the only remedy available to him at that point of time was to comply with the directions issued in the letter dated 26.12.2012. The subsequent letter dated 29.04.2013 also binds him to the effect that his revalidation would come only on compliance. These orders are also not put into challenge.

6.5. The petitioner's request to the Grievance Committee was rejected initially on the ground of lack of jurisdiction. The subsequent order was a cryptic one without due hearing of the wing of the department which took action against the petitioner. There was no analysis of the relevant materials. The petitioner did not place the relevant records. The Grievance Committee also lacked the technical expertise of the Training Committee. It did not discuss the question as to whether the petitioner has satisfied the requisite criteria or not. Therefore, there is no binding effect on the said decision made. Even otherwise, it will not take away the right of the Training Committee to satisfy itself about the performance of the petitioner to act as a Check Pilot.

6.6. When the petitioner was asked to attend the ground class, strangely, he has given his reply stating the illness of his family member and thus, not questioned its validity. Thereafter, the Training Committee, which consists of 15 top officials, took a conscious decision by assigning clear reasons after taking note of all the conduct of the petitioner. This Court does not find any perversity in the said decision made. It is also not the case of the petitioner that the work of the Line Training Captain does not involve integrity free from prejudice and impartial conduct. Accordingly, the challenge made to the decision taken by the Training Committee cannot be sustained.

6.7. A further contention was raised that the time limit given in the circular was not complied with and it is not necessary to send an Officer for training/classes in all situation. This Court is afraid that the said contention also cannot be accepted. The time schedule has to be seen contextually on the facts of each case. At best, it can be a guideline. It cannot be said that a person cannot be awarded or remould from a Check Pilotship or reevaluated after the expiry of the specified period. The petitioner has not demonstrated that he is entitled on performance to function as a Check Pilot. The said issue also does not lie within the jurisdiction of this Court as it involves application of mind by an Expert Body. The decision to refer the petitioner also cannot be questioned as it lies within the jurisdiction of the authorities. This Court cannot decide on the necessity and desirability to send an Officer for training. Similarly, the other contentions sought to be raised that the training undergone qua a Pilot will have to be read into a training meant for Check Pilotship does not merit acceptance. As noted above, the role of a Pilot is different from that of a Check Pilot and thus, the requisite parameters would also be different. It is not, as if, by determining Pilot one would automatically become a Check Pilot, hence, the said contention was also rejected.

7. For the aforesaid reasons, this Court does not find any merit in these writ petitions. Accordingly they are dismissed. However, the dismissal of these writ petitions will not stand in the way of the respondents to consider the request of the petitioner for Check Pilotship upon satisfaction of the petitioner's compliance and performance. No costs. Consequently, connected miscellaneous petition is also dismissed.

15.06.2016 Index Yes/No raa To 1 .The Secretary, Union of India Ministry of Civil Aviation, Rajiv Gandhi Bhavan, Safdarjung Airport, New Delhi-110003.

2 .The Chairman and Managing Director, Air India Limited, Airlines House, Gurudwara Rakabganj Road, New Delhi-110001.

3. The Executive Director of Operations, Air India Limited, New Delhi-110 003.

4. The General Manager, Operations Department, Air India Limited, Meenambakkam, Chennai-600 027.

5. The Executive Director of Flight Safety, Air India Limited, New Delhi-110 003.

6.The Director of Training, Central Training Establishment, Air India Limited, (CTE) Ferozguda, Hyderabad-500 011.

M.M. Sundresh, J.

raa Pre delivery Common Order in W.P.Nos.32885/2014 & 124/2016 15.06.2016